Outlook

RE: Formal Request for Clarification of Policy Authority and Position Duties – Memorandum Attached

From Pope, Clinton (IHS/PHX/PIMC) <Clinton.Pope@ihs.gov>
Date Wed 28-May-25 12:30
To Turnage, Kevin D. (IHS/PHX) <Kevin.Turnage@ihs.gov>; McCabe, Endreya (IHS/PHX) <Endreya.McCabe@ihs.gov>
Cc White, Marlon (IHS/PHX/AO) <Marlon.White@ihs.gov>; Wright, Tabbetha (IHS/PHX) <Tabbetha.Wright@ihs.gov>; Majewski, Lisa (IHS/HQ) <Lisa.Majewski@ihs.gov>

Mr. Turnage,

My directive remains. Remove yourself from all approval workflows.

I am confident there are other means available to perform the duties and responsibilities of your PD. Please coordinate with your supervisor as needed to clarify workflows that will allow you to perform your duties and responsibilities. It is my expectation that this change will improve your effectiveness. I am available to assist as needed.

Very Respectfully,

Clinton D. Pope, MSIE, CPHQ
Chief Quality Officer
Indian Health Service
Department of Health and Human Services
Phoenix Service Unit

Office: (602)581-6563
Cell: (928)892-3234

From: Turnage, Kevin D. (IHS/PHX) <Kevin.Turnage@ihs.gov>
Sent: Wednesday, May 28, 2025 12:07 PM
To: Pope, Clinton (IHS/PHX/PIMC) <Clinton.Pope@ihs.gov>; McCabe, Endreya (IHS/PHX) <Endreya.McCabe@ihs.gov>
Cc: White, Marlon (IHS/PHX/AO) <Marlon.White@ihs.gov>; Wright, Tabbetha (IHS/PHX) <Tabbetha.Wright@ihs.gov>; Majewski, Lisa (IHS/HQ) <Lisa.Majewski@ihs.gov>
Subject: RE: Formal Request for Clarification of Policy Authority and Position Duties – Memorandum Attached

Dear Mr. Pope,
Thank you again for providing written clarification regarding the expectations associated with my duties under Position Description PX3147.
I must respectfully express a serious concern regarding the directive that I remove myself from all approval workflows within the PolicyStat system. This action—delivered in direct response to my formal memorandum raising compliance objections—may reasonably be construed as retaliatory under **5 U.S.C. § 2302(b)(8)** and **41 U.S.C. § 4712**, both of which prohibit adverse action in response to protected compliance activity.
More critically, this directive directly interferes with my ability to carry out the essential functions of my position as outlined in PX3147, which explicitly includes:

- Providing advisory services for the *content and authentication* of policies and procedures;

- Overseeing the *coordination and distribution* of all new and revised policies;
- Ensuring policy content is *valid, consistent*, and reflects *actual or intended practice*;
- Advising on implementation of regulatory changes and maintaining documented scopes of service.

If I am removed from the policy workflow and no longer notified of policy changes, I will be unable to fulfill these responsibilities in any meaningful way.
This concern is reinforced by the **Indian Health Manual (IHM)**, which imposes a clear obligation on every IHS facility to implement structured processes for developing, reviewing, and maintaining policies that comply with applicable laws, regulations, and accreditation standards. As stated in **IHM Part 1, Chapter 1**:
"Each Area and Service Unit must establish mechanisms for the development, review, revision, and distribution of policies to ensure compliance with applicable laws, regulations, and accreditation standards."
These requirements necessarily involve designated personnel—such as Policy Consultants or Coordinators—who ensure legal and clinical accuracy in policy content before it is approved or implemented. The role I currently occupy serves that function within the Phoenix Service Unit.
Removing me from policy workflows without providing an alternative compliance mechanism is not only inconsistent with the IHM but also exposes the organization to regulatory risk, particularly under CMS Conditions of Participation (42 C.F.R. § 482.21), The Joint Commission standards.
Accordingly, I respectfully request the following:

1. **Written clarification** on how I will be notified of new or revised policies in the absence of workflow access;
2. **Specification of the alternative mechanism** by which I am expected to perform my statutory and regulatory compliance duties;
3. **Assurance that safeguards remain in place** to ensure no noncompliant policies are approved or distributed without the necessary expert review.

I appreciate your support for the pending desk audit and request that Human Resources provide a formal update on its status, as this classification review is now clearly tied to the scope and independence of my role.
Finally, if the agency maintains that I do not hold the authority as defined in PX3147, I respectfully renew my request for a written legal determination from Area Counsel or the Office of General Counsel that cites the specific legal, regulatory, or policy authority that limits or removes such responsibilities.
Thank you for your consideration. I remain committed to our shared goal of policy integrity, regulatory readiness, and safe patient care.
Respectfully,
Hon. Kevin D. Turnage, MSN Ed., RN, AMB-BC, NE-BC®, NHDP-BC™, NPD-BC™
Policy and Procedure Nurse Consultant, COR II
Phoenix Indian Medical Center
Indian Health Service I U.S. Department of Health & Human Services

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From: Pope, Clinton (IHS/PHX/PIMC) <Clinton.Pope@ihs.gov>
Sent: Wednesday, May 28, 2025 10:10
To: Turnage, Kevin D. (IHS/PHX) <Kevin.Turnage@ihs.gov>; McCabe, Endreya (IHS/PHX) <Endreya.McCabe@ihs.gov>
Cc: White, Marlon (IHS/PHX/AO) <Marlon.White@ihs.gov>; Wright, Tabbetha (IHS/PHX) <Tabbetha.Wright@ihs.gov>
Subject: RE: Formal Request for Clarification of Policy Authority and Position Duties – Memorandum Attached

Mr. Turnage,

Good morning, and thank you for resending the memo in a format that I could open.

I'm happy to provide some clarification and guidance. We have seen many improvements with policy management and want to continue down that path.

The PX3147 position description states, "Incumbent serves as an analyst and advisor with the professional knowledge of a registered nurse who provides consultative and advisory services for the development, content, and authentication of the organization's policies and procedures, clinical

protocols, and clinical practice guidelines."

As a Nurse Consultant, we expect you to perform the duties and responsibilities outlined in your PD. When your analysis of policies discover content that is not valid, not consistent, or is conflicting, or when procedures do not describe actual or intended practice. It is your duty and responsibility to inform those who have authority to enforce compliance, namely policy owners, their supervisors, and as needed, executive leadership.

It is your duty and responsibility to oversee the coordination and distribution of all new and revised policies. It is your duty and responsibility to manage the on-line organization of these documents.

It is your duty and responsibility to advise leaders on ways to implement new regulations and processes.

You must collaborate with leaders to maintain the documented scopes of services for various departments.

It is your duty and responsibility to form multidisciplinary teams to develop and implement policies and procedures, clinical protocols, and CPGs.

We fully expect you to advise on best practices to support continual survey readiness.

It is your duty and responsibility to provide guidance for developing and implementing competencies, internal logs and other forms of documentation that assist with meeting regulatory compliance and accreditation standards.

All of this is done by providing consultative and advisory services.

Nowhere in the PD does it state or imply that you have authority to reject policy. However, you may provide consultative and advisory recommendations that a policy should be rejected, revised, updated, changed, etc., such that you inform those in authority that document content is not valid, not consistent, or is conflicting, or when procedures do not describe actual or intended practice.

When your approach is found to be unsound or ineffective in meeting requirements or is not producing expected results, or when your recommendations are not feasible, or when requirements are not adhered to, your supervisor will provide correction and guidance and direction. Your supervisor outlines overall objectives and available resources.

You are expected to be an expert and independent to plan and complete your work assignments.

The purpose of your contact with others is to plan, coordinate, or advise on efforts, or to resolve issues or operating problems by influencing or persuading people who are working toward mutual goals and have basically cooperative attitudes. Contacts typically involve formalizing processes by writing policies and procedures.

If you are performing any duties or responsibilities outside the scope of this PD, you are directed to discuss those with your supervisor for further clarity and direction, as you are not expected or directed to perform any duties or responsibilities outside the scope of this PD.

Regarding a desk audit, I am fully supportive of one being done. I will leave that in the hands of Dr. McCabe to follow up on and facilitate that request. I am available to assist as needed.

To be explicitly clear, it is extremely inappropriate for you to assume authority that you do not have and has not been delegated to you. You are not in a position of authority to enforce compliance. No authority is being removed or limited. Your position is one of providing consultative and advisory services to those who do have authority to enforce compliance. It is clear to me that we have inappropriately allowed you to set yourself as the final approver in the PolicyStat system. You are hereby directed to remove yourself from all approval workflows.

Thank you for the opportunity to provide clarity and direction regarding your PD. Thank you for your commitment to patient safety and to regulatory compliance. I'm confident we are able to get on the same sheet of music to perform this important work more effectively.

Very Respectfully,

Clinton D. Pope, MSIE, CPHQ
Chief Quality Officer
Indian Health Service
Department of Health and Human Services
Phoenix Service Unit

Office: (602)581-6563
Cell: (928)892-3234

From: Turnage, Kevin D. (IHS/PHX) <Kevin.Turnage@ihs.gov>
Sent: Wednesday, May 28, 2025 7:00 AM
To: McCabe, Endreya (IHS/PHX) <Endreya.McCabe@ihs.gov>; Pope, Clinton (IHS/PHX/PIMC) <Clinton.Pope@ihs.gov>
Cc: White, Marlon (IHS/PHX/AO) <Marlon.White@ihs.gov>; Wright, Tabbetha (IHS/PHX) <Tabbetha.Wright@ihs.gov>
Subject: RE: Formal Request for Clarification of Policy Authority and Position Duties – Memorandum Attached

Resending as the previous version required a certificate to open.

V/r

Hon. Kevin D. Turnage, MSN Ed., RN, AMB-BC™, NE-BC®, NHDP-BC™, NPD-BC™
Policy and Procedure Nurse Consultant, COR II,

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From: Turnage, Kevin D. (IHS/PHX) <Kevin.Turnage@ihs.gov>
Sent: Tuesday, May 27, 2025 13:37
To: McCabe, Endreya (IHS/PHX) <Endreya.McCabe@ihs.gov>; Pope, Clinton (IHS/PHX/PIMC) <Clinton.Pope@ihs.gov>
Cc: Szopinski, Wanda (IHS/PHX/PIMC) <Wanda.Szopinski@ihs.gov>; White, Marlon (IHS/PHX/AO) <Marlon.White@ihs.gov>; Wright, Tabbetha (IHS/PHX) <Tabbetha.Wright@ihs.gov>
Subject: Formal Request for Clarification of Policy Authority and Position Duties – Memorandum Attached

Dear Ms. McCabe, Mr. Pope, and Human Resources,

Following legal review by an attorney of my Position Description:

POSITION TITLE: Nurse (Consultant)

ORGANIZATIONAL TITLE: Policy and Procedures Officer

PP/SERIES/GRADE: GS-0610-12

ORG LOCATION: DHHS, IHS, Phoenix Area, Phoenix Service Unit, Phoenix Indian Medical Center, Division of Quality Management, Performance Improvement

FLSA STATUS: Exempt

JOB CODE: PX3147

I am submitting the attached final version of my memorandum.

This memorandum responds to statements made during the Microsoft Teams meeting on May 21, 2025, in which I was informed that I "do not have the authority to reject a policy."

As the attached document outlines, this statement is directly at odds with the duties and authority explicitly defined in my Position Description (PX3147) and with applicable federal regulations and protections.

The memorandum also references a formal desk audit request I submitted in 2024, for which no written response has been received. I respectfully request that this document be reviewed and considered in conjunction with that unresolved matter.

If the agency position remains that I do not hold the authority as described, I formally request a written legal determination from Area Counsel or the Office of General Counsel, with specific citations to any statute, regulation, or policy that overrides the language in my current classification.

Please confirm receipt of this memo and advise of next steps. A copy of this memorandum has also been submitted to the U.S. Office of Special Counsel pursuant to my rights under the Whistleblower Protection Act (5 U.S.C. § 2302(b)(8)) and the federal contractor whistleblower statute (41 U.S.C.

§ 4712), as applicable.

Respectfully,

Hon. Kevin D. Turnage, MSN Ed., RN, AMB-BC™, NE-BC®, NHDP-BC™, NPD-BC™

Policy and Procedure Nurse Consultant, COR II,

Phoenix Indian Medical Center

Cell: 602-647-9126

Book time with Turnage, Kevin D. (IHS/PHX): Contracting Officer Representative Discussion
Book time with Turnage, Kevin D. (IHS/PHX): Policy Discussion Time

Confidentiality Notice: This email and any attachments contain confidential information protected under 25 USC §1675. The protections provided by this statute ensure that any data related to the quality of health care services provided by the Indian Health Services (IHS) is safeguarded. The specific protections include the confidentiality and privacy of the information contained within this email, which is intended solely for the use of the authorized recipient(s). Unauthorized disclosure, copying, distribution, or use of this information is strictly prohibited. Access to this information is limited to individuals who have official authorization and require it to perform their duties related to health care services and quality improvement. This information must not be disclosed to any unauthorized person or entity without the explicit consent of the patient or as required by law. The data shared is to be used exclusively for activities aimed at enhancing the quality of care provided by IHS. Any unauthorized disclosure or breach of confidentiality may result in legal penalties under federal law. If you have received this email in error, please notify the sender immediately and delete the original message. Thank you for your compliance.

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Book time to meet with me